

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3649

By: Stinson

AS INTRODUCED

An Act relating to real property held by the Department of Mental Health and Substance Abuse Services; amending 43A O.S. 2021, Section 2-111, as last amended by Section 1, Chapter 377, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-111), which relates to real property trust; requiring all proceeds of sales to be deposited into the Department of Mental Health and Substance Abuse Services Real Property Trust; expanding permissible use of proceeds from sale; adding descriptions of tracts of land to be allowed to be sold; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43A O.S. 2021, Section 2-111, as last amended by Section 1, Chapter 377, O.S.L. 2023 (43A O.S. Supp. 2025, Section 2-111), is amended to read as follows:

Section 2-111. A. 1. The Board of Mental Health and Substance Abuse Services is hereby authorized and directed to create a trust into which all real property held by or for the benefit of the Department of Mental Health and Substance Abuse Services shall be transferred.

2. The trust shall provide that:

- 1 a. the property placed into the trust may never be sold,
2 except for the tracts specifically described in
3 subparagraph c of this paragraph, if it is determined
4 by the trustees for the Department's Real Property
5 Trust and by the Department that such a sale is in the
6 best interests of the Department, and then the
7 proceeds of any sale shall remain with and be
8 deposited into the Department of Mental Health and
9 Substance Abuse Services Real Property Trust. All
10 such proceeds shall be used exclusively for tangible
11 infrastructure improvements, capital projects, or
12 other purposes that directly benefit the persons
13 served by the Department. ~~The provisions of 61 O.S.~~
14 ~~Section 327 do not apply to the sale of real property~~
15 ~~under this section, otherwise the property shall be~~
16 ~~held in perpetuity for the sole benefit of the~~
17 ~~Department,~~
- 18 b. the property held by the trust which is not needed for
19 use by the Department may be leased or rented to
20 others and all income received from such leases or
21 rentals shall be payable to the Department for use by
22 the Department to fulfill the purposes of the
23 Department, except as provided in subparagraph d of
24 this section,

c. the following tract or tracts of land may be sold as set forth in subparagraph a of this paragraph:

(1) Land owned by the Department located in Sections 20 and 29, Township 9 North, Range 2 West, Cleveland County, Oklahoma,

(2) Land owned by the Department located in Block 5 of Culbertson Heights Addition to the City of Oklahoma City, Oklahoma County, Oklahoma,

(3) Land owned by the Department located in Section 27, Township 9 North, Range 2 West, Cleveland County, Oklahoma,

(4) Land owned by the Department located in Section 20, Township 20 North, Range 13 East and described as PRT NW NW BEG 659.68 Feet South & 310.67 Feet East NWC NW, thence North 142.64 Feet, NE 150 Feet, NW 140 Feet to point on South Line Mohawk Blvd, NE 300 Feet, SE 187.75 Feet, East 204.92 Feet to point 405 West of East Line NW, thence South 355.89 Feet to point on North Line Atlanta Circle ADD, thence West 604.06 to Point of Beginning, 5.16 acres More or Less in Tulsa County, Oklahoma,

(5) Land owned by the Department located in all that part of the North Half of the Northwest Quarter

of the Northwest Quarter (N/2 NW1/4 NW1/4) of
Section 20, Township 20 North, Range 13 East of
the Indian Base and Meridian, Tulsa County, State
of Oklahoma, according to the United States
Government Survey thereof, being more
particularly described as BEGINNING at the
Northeast corner of such NW/4 NW/4; thence West
along the North line of such NW/4, a distance of
405 feet to a point; thence South and parallel to
the East line of such NW/4, a distance of 615.53
feet to a point; thence East and parallel to the
North line of such NW/4, a distance of 405 feet
to a point in the East line of such NW/4 NW/4,
and such point being 615.53 feet South of the
Northeast corner of such NW/4 NW/4; thence North
along the East line of such NW/4 NW/4 a distance
of 615.53 feet to a Point and Place of the
Beginning,

(6) Land owned by the Department located in Lots 13
through 24, Inclusive Block 5 and Bath Orchard
Addition to Oklahoma City, SE 1/4 of Section 26,
Township 12 North, Range 3 West, ~~and~~

(7) Land owned by the Department located in a portion
of Block 2 in Warr Acres, Oklahoma and described

as SE 1/4, SE 1/4 of Section 9, Township 12
North, Range 4 West, ~~and~~

(8) Land owned by the Department located in all of
blocks 209 and 210 in the City of McAlester,
formerly South McAlester, Pittsburg County,
Oklahoma,

(9) Land owned by the Department in a portion of the
Northwest 4th of Section 35 Township 2 North,
Range 12 West of the Indian Meridian, Comanche
County, Oklahoma,

(10) Land owned by the Department in 35-2N-12W C T BEG
60' E of W LNE of SEC 35-2N-12W; 1611'S of N/LINE
of SEC E 150', W 150', N 150' TO POB, Comanche
County, Oklahoma,

(11) Land owned by the Department in a part of Section
9, Township 24 North, Range 22 West, Woodward
County, Oklahoma, and

(12) Land owned by the Department in Lots 9 through
13, both inclusive, Block 4, Jonesville Addition
to the City of Enid, and

d. under no condition should any real property held in
trust be sold to fund prevention, mental health or
addiction treatment services.

1 B. Upon the creation of the trust authorized in subsection A of
2 this section, the Office of Management and Enterprise Services is
3 directed to provide all necessary assistance to the Department of
4 Mental Health and Substance Abuse Services to identify and transfer
5 all property held by or for the benefit of the Department of Mental
6 Health and Substance Abuse Services to the trust. Except as
7 provided in subsection C of this section, the Office of Management
8 and Enterprise Services is authorized and directed to provide all
9 requested assistance to the Department of Mental Health and
10 Substance Abuse Services in leasing property placed in such trust.

11 C. The Commissioners of the Land Office are authorized and
12 directed to provide all requested assistance to the Department of
13 Mental Health and Substance Abuse Services in leasing mineral
14 interests placed in such trust.

15 SECTION 2. It being immediately necessary for the preservation
16 of the public peace, health or safety, an emergency is hereby
17 declared to exist, by reason whereof this act shall take effect and
18 be in full force from and after its passage and approval.

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